

**JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND OPEN
COMPETITION (OVERSEAS CONTRACTING ACTIVITIES)**

1. Identification of the Activity and the Requiring Agency.

I recommend that Embassy Abu Dhabi use other than full and open competition for the renewal of the 250Mbps Internet Transport Service for one year from 04/22/2025 to 04/21/2026. This contract covers 12 user sections (months). The estimated cost is AED 51,526.00 (\$14,029) per month/user, totaling AED 618,312.00 (\$168,340.00) for the year.

2. Nature and/or description of the action being approved.

250 MBPS Dedicated Internet Leased Link Circuits for Department of Information Management DTSP0 WASHINGTON DC.

3. A description of the supplies or services required to meet the agency's needs.

The Department of Information Management DTSP0 WASHINGTON DC connection needs to be capable of dedicated data transmission at two hundred and fifty (250) Megabits per second (Mbps) upload and download, respectively. A minimum of Two (6) usable, dedicated Internet Protocol version 4 (IPv4) addresses from the ISP's Internet IPv4 address pool.

4. Government Cost Estimate.

The estimated annual cost for this service is approximately \$168,340.

5. An identification of the statutory authority permitting other than full and open competition. FAR 6.302-1(c)

The statutory authority for other than full and open competition is Title 10 U.S. Code Section 253(c)(1)), as implemented by FAR 6.302-1, expert services. The Emirates Telecommunication Company (Etisalat) Abu Dhabi is the only available and responsible source in Abu Dhabi. The other service provider in the UAE is DU Telecommunication but DU and Etisalat are belonging to the same local government - owned infra structure under the Telecommunication Regulatory Authority (TRA) of the UAE. The Embassy and Consulate have historically used Etisalat and experienced no issues in service or in their ability to meet SLAs. We do, however, have concerns about DU's ability to meet service requirements.

6. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited (for sole source acquisitions; also required for unusual and compelling urgency where more than one offer will not be solicited).

Etisalat is the service provider for all telecommunication services for the Mission UAE since Establishment of the Embassy, Abu Dhabi. Currently no other service provider is capable and trusted to deliver Missions tele communication needs. Also, Etisalat is the telecom service provider for U.S. Consulate in Dubai.

7. **A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable. The description should include whether .SAM.gov notice was or will be publicized, as required by FAR 5.2, and if not, which exception under FAR 5.202 applies (e.g., blanket waiver provided in DOSAR 605.202-70).**

Publicizing Contract Actions, Foreign Acquisitions; DOSAR 605.202-70 / 5.202 (a) (13).

8. **A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.**

Etisalat has fixed tariff and package for their services for all their customers as they are semi-governmental institution.

9. **A description of the market survey conducted and the results or a statement of the reasons a market survey was not conducted.**

A market research survey was conducted for this acquisition. The service provider is Etisalat which is a monopoly source managed by the local government entity under TRA. The other source is Du Telecommunications, but both are working with the same tariff fixed by TRA. Based on the services being provided by Etisalat, it is determined that Etisalat is technically acceptable and reflecting the best value to the government. Embassy has recently done a comparative analysis with the packages of Etisalat and Du and found that the package offered by Etisalat is more attractive to the U.S.G.

10. **Any other facts supporting the use of other than full and open competition.**

The U.A.E. Government has a full monopoly on Telecommunication systems and although there are two ISPs (Etisalat and Du), both ISPs belong to same government-owned infrastructure.

11. **A listing of sources, if any that expressed, in writing, an interest in the acquisition.**

Etisalat Telecommunication PJSC.

12. **A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.**

The U.A.E. Government, through its proxies, is the only source and legal authority to provide dedicated internet services in country.

CERTIFICATIONS

I certify that this justification is accurate and contains complete data necessary to support the recommendation for other than full and open competition.

X

Name Stephen L Craven
Title DT Infrastructure chief

Requirements Office

I certify that this submission is accurate, and that it contains complete information necessary to enable other officials to make an informed recommendation for approval or disapproval.

X

Contracting Officer

I certify that the national security concerns of the referenced acquisition(s) meet the criteria set forth in FAR 6.302-1. *

Only required when the justification is under the authority of FAR 6.302-1 and DOSAR 606.302-1, Unique Source. Reference DOSAR 606.302-1(c)(1) for the appropriate signatory authority and for additional information that must be included in the justification when using this statutory authority.